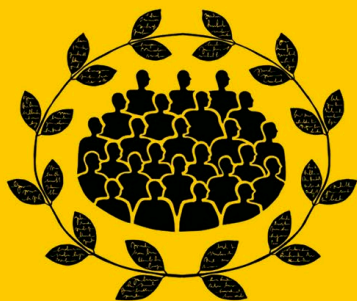




THIS SHALL BE BINDING BY LAW

THE TWELVE TABLES (c. 450 BCE)

IN CONTEXT

FOCUS

Codification of Roman law

BEFORE

510/509 BCE Romans drive out their last king and establish a republic. All government positions are held by patricians.

494 BCE After the plebeians threaten to leave Rome, they are granted the right to elect their own officials, called tribunes, to defend their interests and propose laws.

AFTER

390 BCE The original Twelve Tables are destroyed when invading Gauls sack Rome. Copies of the text survive, and it is learned by heart by generations of Roman children.

367 BCE Plebeians finally gain the right to serve as consul, one of Rome's two annually elected heads of state.

In around 450 BCE, the Roman Republic compiled its first written law code, inscribed on 12 bronze tablets displayed in the Forum, Rome's main public space. At the time, the plebeians (commoners) were engaged in a long-running struggle with the small ruling class of patrician (noble) families who held high office and the priests who acted as magistrates and interpreted the laws handed down over time. Plebeians could be punished for offenses against laws of which they had no knowledge. As a concession to them, 10 patrician magistrates, called decemvirs, were tasked with recording Rome's customary laws. Thanks to the decemvirs' Twelve Tables, Roman citizens now knew some of their more important rights and could appeal against magistrates' rulings.

A code of civil laws

The Tables dealt with civil law (the law concerning relations between members of society), outlining citizens' rights and responsibilities. It also contained

significant provisions about legal procedure, covering summons to court, trials, the role of witnesses, and execution of judgment.

Rome was still an agricultural town, and many of the newly codified laws concerned farming disputes. One law banned marriage between patricians and plebeians but was swiftly repealed. Others were later replaced by updated laws. Yet Romans looked back to the Twelve Tables as the foundation of their legal system. ■



That single little book of the Twelve Tables ... seems to me, assuredly, to surpass the libraries of all the philosophers.

Cicero

Roman statesman (106–43 BCE)



See also: Early legal codes 18–19 ■ The *Lex Aquilia* 34 ■ Ulpian the Jurist 36–37 ■ Magna Carta 66–71